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TOWN OF
WESTON

TOWN OF WESTON INCORPORATED 1712-13.

CERTIFICATE OF TOWN CLERK

MSD 01/20/88 12:16:35 338 10.00

I, Robert G. Duhaime, Town Clerk, Town of Weston, herewith certify that attached hereto is a true copy of the VARIANCE DECISION-SPECIAL PERMIT DECISION of the Town of Weston Board of Appeals rendered December 9, 1987 and filed with the Town of Weston Planning Board and Town Clerk with accompanying plans concerning the following described property:

Name of Owner	Location of Property
Ramesh & Pushpa R. Motwane	21 Drabbington Way (Book 16519 - Page 129)

AND I FURTHER CERTIFY that more than twenty (20) days have elapsed since the filing of the said decision with me and no appeal thereto has been filed.

Robert G. Duhaime,
Town Clerk
Town of Weston

RGD:irq

December 30, 1987

TOWN OF WESTON
MASSACHUSETTS

BOARD OF APPEALS

There having been presented to the Board a petition for variance dated October 13, 1987, by Ramesh and Pushpa R. Motwane, the Board decided to hold a hearing on said petition on November 18, 1987 and caused the following notice to be published in the Town Crier, a newspaper of general circulation in Weston on October 29, and November 3, 1987:

"TOWN OF WESTON
MASSACHUSETTS

BOARD OF APPEALS

"Notice is hereby given that the Board of Appeals of the Town of Weston will hold a public hearing on Wednesday, November 18, 1987, at 8:10 P.M., at the Town Hall, on a petition by Ramesh and Pushpa R. Motwane, 123 Esty Farm Road, Newton, MA 02159, for variance from the Zoning Bylaw, as amended, with respect to their premises, 21 Drabbington Way, Weston, to allow the construction of an addition to the existing building, a deck, a gazebo, a fountain and two concrete disc pads where (a) the setbacks from the southeasterly and southwesterly lot lines to the addition, the deck and the gazebo are less than the minimum required under said Bylaw, and (b), the setback from the northeasterly lot line to one of the concrete disc pads and the setback from the southwesterly lot line to the other concrete disc pad and the fountain are less than the minimum required under said Zoning Bylaw, all as shown on plan on file with the Board.

"Board of Appeals of the Town of Weston
By: Robert P. Cook, Chairman

October 29, 1987"

The Board also mailed the foregoing notice postage prepaid on October 29, 1987 to the following named persons deemed by the Board to be all of the persons affected by said petition as they appear on the most recent tax list:

Petitioner: Ramesh & Pushpa R. Motwane, 123 Esty Farm Road
Newton, MA 02159
Fay I. Schuch, 25 Drabbington Way
Linda J. & Gordon L. Guttrich, 33 Drabbington Way
Ann G. & David P. Bell, 121 North Avenue
Joan L. & Theodore D. Poulos, 12 Drabbington Way
Rita K. & Deane M. Baker, 8 Marshall Way
Natalie & Leonard Korik, 20 Drabbington Way
Frederick Page, 44 Page Road
Planning Board Chairman: Donald B. Myers
Board of Appeals Members: - Eames, Becton, Smith
Planning Boards: (Notice only) Lincoln, Natick, Newton, Waltham, Wayland, Wellesley

Notice was delivered in hand to Board of Selectmen, Board of Assessors, Board of Health, Town Engineer, Town Counsel, Town Clerk, Building Inspector, Fire Chief and Planning Board Members.

I certify that the foregoing notice was mailed or delivered in hand to the above named persons on October 29, 1987

Ilana R. Quirk

. . . . . .

Pursuant to the foregoing notice, the Board held a public hearing on November 18, 1987 AT 8:10 P.M. The following members were present:

Ronald D. Eames, Acting Chairman
L. Whitman Smith
Henry P. Becton, Jr., Acting Secretary

Mr. Motwane explained his need for a deck and gazebo to complete the construction of their house. The odd size of the lot and the interior layout of the house makes it impossible to place an exterior living space in any location that would not require a variance. The foot-deep fountain would enhance the landscaping and the placement of the satellite dish or dishes were dictated by the topography of the lot.

Several abutters were in attendance and expressed various objections, particularly to fountain and satellite dishes. In addition the Board received letters from Mr. Deane M. Baker objecting to the plan as proposed.

The Board determined that the proposed deck and gazebo would not be detrimental to the neighborhood or a derogation of the Zoning Bylaw and that denial of a variance for their construction would be an unnecessary hardship on the Petitioners.

However, the Board also concluded that the placement of the satellite dish or dishes so close to the lot sidelines would be detrimental to the neighborhood and that the fountain, also close to the lot sideline would be a hazard for young children in the area and a detriment to the neighborhood.

By unanimous vote of the above named members, the Board decided that a variance is to be granted to allow construction of a deck, and a gazebo as additions to the existing dwelling where the gazebo is no closer than 23 feet from the southerly lot sideline substantially as shown on a plan by John R. Humphrey, registered surveyor, on file with the Board. The Board also decided by unanimous vote to denty the other requested variances.

PETITION GRANTED IN PART

RECEIVED
DEC 9 1987
TOWN OF WESTON

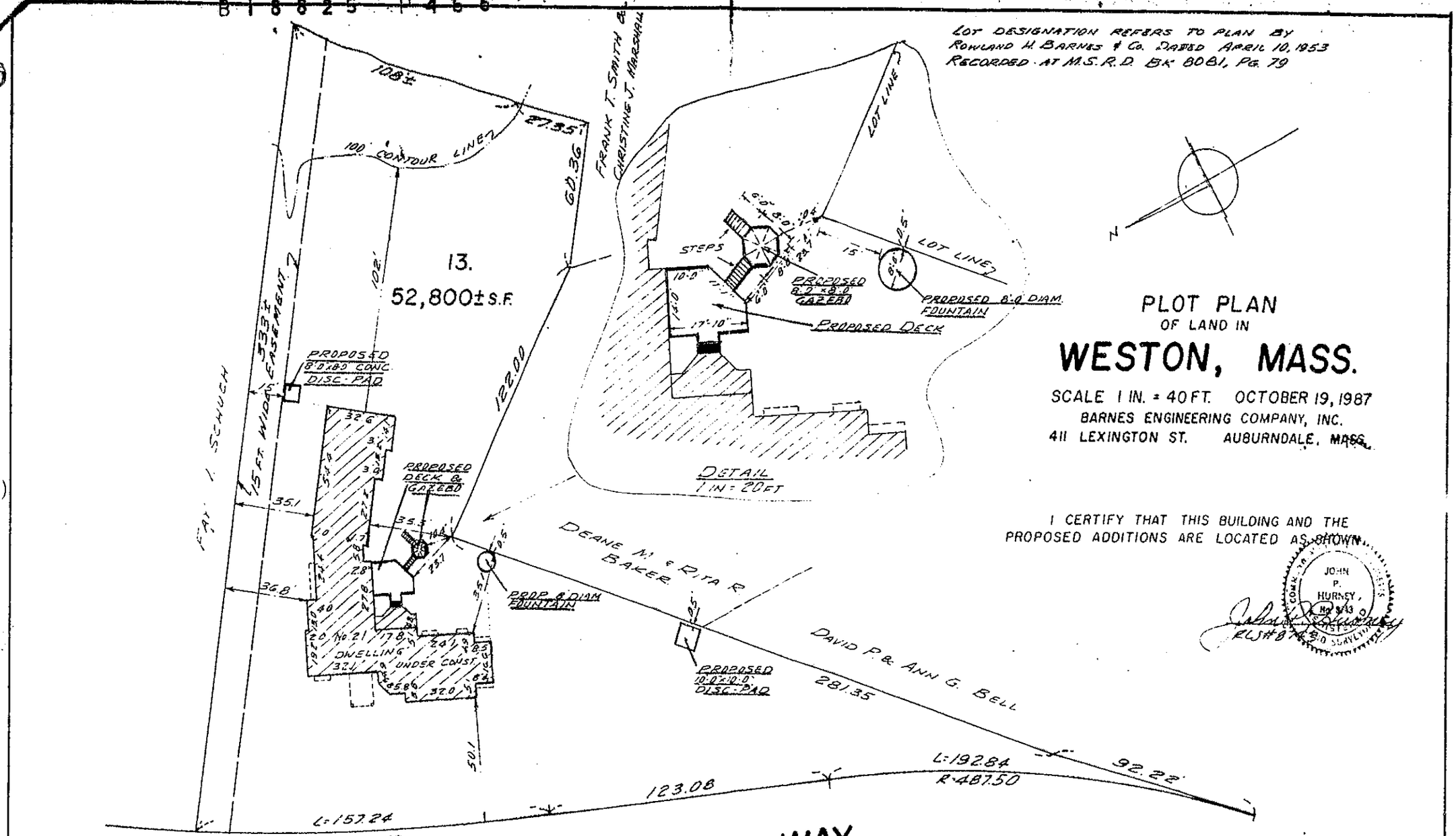
Attest: Henry P. Becton, Jr., Acting Secretary

Filed in the office of the Town Clerk

B18825 P456

B18825 P457

LOT DESIGNATION REFERS TO PLAN BY
ROWLAND H. BARNES & Co. DATED APRIL 10, 1953
RECORDED AT M.S.R.D. BK. 8081, PG. 79



PLOT PLAN
OF LAND IN
WESTON, MASS.

SCALE 1 IN. = 40 FT. OCTOBER 19, 1987
BARNES ENGINEERING COMPANY, INC.
411 LEXINGTON ST. AUBURNDALE, MASS.

I CERTIFY THAT THIS BUILDING AND THE PROPOSED ADDITIONS ARE LOCATED AS SHOWN

JOHN P. HURNEY, No. 9413, REGISTERED LAND SURVEYOR

RLS#8